

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

Index No:
Date Filed:

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JEFFERY LAMISON,

Plaintiff designates Queens
County as the place of trial.

Plaintiff,

SUMMONS

- against -

The basis of venue is CPLR
504(3).

CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT, NEW YORK CITY
DEPARTMENT OF CORRECTIONS, POLICE
OFFICER EDWARD CELONA and GENTING NEW
YORK LLC d/b/a/ RESORTS WORLD CASINO
NEW YORK CITY,

The county in which the cause of
action arose.

Plaintiff resides at:

385 Bayview Ave
Inwood, NY 11096

Defendants.
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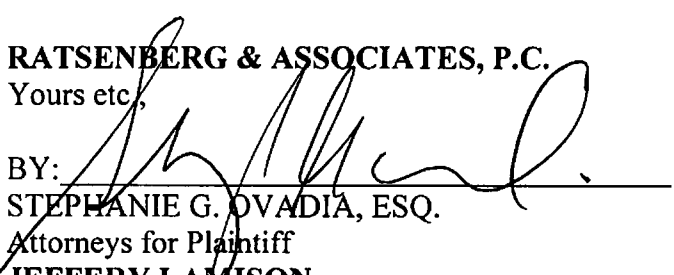
TO THE ABOVE-NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer on the Plaintiff's Attorneys within twenty (20) days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or within thirty (30) days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Brooklyn, New York
May 13, 2019

RATSENBERG & ASSOCIATES, P.C.

Yours etc,

BY: 

STEPHANIE G. OVADIA, ESQ.

Attorneys for Plaintiff

JEFFERY LAMISON

2579 East 17th Street, Suite 51
Brooklyn, New York 11235
(718) 676-5757

To: CITY OF NEW YORK
c/o Corporation Counsel
New York, NY 10007

NEW YORK CITY
POLICE DEPARTMENT
c/o Corporation Counsel
New York, NY 10007

NEW YORK CITY
CORRECTIONS DEPARTMENT
c/o Corporation Counsel
New York, NY 10007

POLICE OFFICER EDWARD CELONA
106 Precinct
NYC Police Department
103-53 101st Street
Ozone Park, NY 11417

GENTING NEW YORK LLC
d/b/a/ RESORTS WORLD CASINO NEW YORK CITY
c/o CORPORATION SERVICE COMPANY
80 STATE STREET
ALBANY, NY 12207-2543

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

JEFFERY LAMISON,

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Index No.:

Plaintiff,

-against-

VERIFIED COMPLAINTCITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT, NEW YORK CITY
DEPARTMENT OF CORRECTIONS, POLICE
OFFICER EDWARD CELONA and GENTING NEW
YORK LLC d/b/a/ RESORTS WORLD CASINO
NEW YORK CITY,

Defendants.

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Plaintiff, by his attorneys, **RATSENBERG & ASSOCIATES, P.C.**, complaining of the defendants herein, respectfully states and alleges, upon information and belief, as follows:

1. Plaintiff, JEFFERY LAMISON, at all times of the institution of this action, was and still is a resident of the County of Nassau, State of New York.

2. Upon information and belief, at all times hereinafter mentioned, the defendant, CITY OF NEW YORK, was and still is a municipal corporation duly organized and existing by virtue of the laws of the State of New York.

3. Upon information and belief, at all times hereinafter mentioned, the defendant, NEW YORK CITY POLICE DEPARTMENT, was and still is a subsidiary, department, or agency of the defendant, CITY OF NEW YORK, duly organized and existing by virtue of the laws of the State of New York.

4. Upon information and belief, at all times hereinafter mentioned, the defendant, NEW YORK CITY DEPARTMENT OF CORRECTIONS, was and still is a subsidiary, department, or agency of the defendant, CITY OF NEW YORK, duly organized and existing by virtue of the laws of the State of New York.

5. Upon information and belief, at all times mentioned, the defendant, POLICE OFFICER EDWARD CELONA, was and still is, an officer of the defendant, CITY OF NEW YORK, and at all times herein was acting in such capacity as the agent, servant, and employees of the Defendant, CITY OF NEW YORK.

6. Upon information and belief, that at all times hereinafter mentioned, the defendant, GENTING NEW YORK LLC D/B/A/ RESORTS WORLD CASINO NEW YORK CITY, was and still is a foreign limited liability company duly organized and existing under the laws of the state of Delaware, and having offices at 110-00 Rockaway Blvd, Jamaica, NY 11420.

7. Upon information and belief, at all times hereinafter mentioned, the defendant, GENTING NEW YORK LLC D/B/A/ RESORTS WORLD CASINO NEW YORK CITY, transacted business within the State of New York; regularly did or solicited business within the State of New York or engaged in other persistent courses, conduct and/or derived substantial revenue from goods used or consumed or services rendered in the State of New York and expected or should have reasonably expected its acts to have consequences within the State of New York and/or derived substantial revenue from interstate or international commerce.

8. On or about July 27, 2018 and within ninety (90) days after the claim herein arose, Plaintiff timely filed a Notice of Claim with the Comptroller of the City of New York, setting forth, among other things, the time, place, and facts underlying Plaintiff's claim against the defendants, CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, NEW YORK CITY DEPARTMENT OF CORRECTIONS, and POLICE OFFICER EDWARD CELONA, together with Plaintiff's demand for adjustment thereof.

9. At least thirty (30) days have elapsed since the service of the claim prior to the commencement of this action and adjustment of payment thereof has been neglected or refused.

10. On or about October 3, 2018, an examination upon oral question was held at the request of the defendants pursuant to General Municipal Law 50(h).

11. This action has been commenced within one year and ninety days after the occurrence of the events giving rise to this Complaint.

FACTUAL BACKGROUND

12. Plaintiff repeats and realleges each and every allegation set forth in each and every paragraph herein before set forth inclusive of this complaint, with the same force and effect as though herein set forth as length.

13. Upon information and belief, at all times hereinafter mentioned, the defendant, GENTING NEW YORK LLC D/B/A/ RESORTS WORLD CASINO NEW YORK CITY, was and still is the owner of the Resorts World Casino New York City located at 110-00 Rockaway Blvd in the County of Queens, City and State of New York.

14. Upon information and belief, at all times hereinafter mentioned, the defendant, GENTING NEW YORK LLC D/B/A/ RESORTS WORLD CASINO NEW YORK CITY, was and still is the lessee of the Resorts World Casino New York City located at 110-00 Rockaway Blvd in the County of Queens, City and State of New York.

15. Upon information and belief, at all times hereinafter mentioned, the defendant, GENTING NEW YORK LLC D/B/A/ RESORTS WORLD CASINO NEW YORK CITY, operated the Resorts World Casino New York City located at 110-00 Rockaway Blvd in the County of Queens, City and State of New York.

16. Upon information and belief, at all times hereinafter mentioned, the defendant, GENTING NEW YORK LLC D/B/A/ RESORTS WORLD CASINO NEW YORK CITY, controlled the Resorts World Casino New York City located at 110-00 Rockaway Blvd in the County of Queens, City and State of New York.

17. Upon information and belief, at all times hereinafter mentioned, the defendant, GENTING NEW YORK LLC D/B/A/ RESORTS WORLD CASINO NEW YORK CITY,

maintained the Resorts World Casino New York City located at 110-00 Rockaway Blvd in the County of Queens, City and State of New York.

18. On or about April 19, 2017, at approximately 6:30 pm, in a parking lot located at the Resorts World Casino New York City located at 110-00 Rockaway Blvd in the County of Queens, City and State of New York, Plaintiff, JEFFERY LAMISON, became involved in an altercation with an unknown individual that poured coffee on him.

19. As a result of the aforementioned altercation, Plaintiff, JEFFERY LAMISON, was restrained of his liberty and confined by Defendants for a period of approximately 13 months.

AS AND FOR A FIRST CAUSE OF ACTION
(FALSE ARREST)

20. Plaintiff repeats and realleges each and every allegation set forth in each and every paragraph herein before set forth inclusive of this complaint, with the same force and effect as though herein set forth as length.

21. On or about April 19, 2017, at approximately 6:30 pm, in a parking lot located at the Resorts World Casino New York City located at 110-00 Rockaway Boulevard in the County of Queens, City and State of New York, Plaintiff, JEFFERY LAMISON, was falsely arrested, falsely imprisoned, illegally searched and seized, by Defendants, who had no probable cause to do so.

22. Defendants, jointly and severally, wrongfully touched and grabbed Plaintiff, JEFFERY LAMISON, several times, as well as seized Plaintiff, JEFFERY LAMISON, in an excessive manner about his person, causing him physical pain and mental suffering. At no time did Defendants have legal cause to grab, handcuff, seize or touch Plaintiff, JEFFERY LAMISON, and nor did Plaintiff, JEFFERY LAMISON, consent to this illegal touching nor was it privileged by law.

AS AND FOR A SECOND CAUSE OF ACTION
(FALSE IMPRISONMENT)

23. Plaintiff repeats each and every allegation in this Complaint as though fully set forth at length herein.

24. On or about April 19, 2017, at approximately 6:30 pm, in a parking lot located at the Resorts World Casino New York City located at 110-00 Rockaway Boulevard in the County of Queens, City and State of New York, Defendants jointly and severally, without any warrant, order, or other legal process and without any legal right, wrongfully and unlawfully arrested Plaintiff, JEFFERY LAMISON, restrained him and his liberty, and then took them into custody. Defendants intentionally confined Plaintiff, JEFFERY LAMISON, without his consent and the confinement was not otherwise privileged by law, and Plaintiff, JEFFERY LAMISON, was conscious of his confinement.

AS AND FOR A THIRD CAUSE OF ACTION
(42 U.S. CODE §1983)

25. Plaintiff repeats each and every allegation in this Complaint as though fully set forth at length herein.

26. Defendant, OFFICER EDWARD CELONA, was at all times relevant, a duly appointed and acting officer of the City of New York Police Department.

27. At all relevant times, OFFICER EDWARD CELONA was acting under color of law. To wit: the statutes, ordinances, regulations, policies and customs and usage of the State of New York and/or City of New York.

28. Plaintiff, JEFFERY LAMISON, is and at all relevant times herein, a citizen of the United States and resident of Nassau County, in the State of New York, and brings this cause of action pursuant to 42 United States Code Section 1983 and 42 United States Code Section 1988 as well as State Civil Rights Laws.

29. Defendant, CITY OF NEW YORK, is a municipality duly incorporated under the laws of the State of New York.

30. The aforementioned described conduct of Defendants resulted in the Plaintiff, JEFFERY LAMISON, being deprived of the following rights under the United States Constitution:

- a. Freedom from assault to his person;
- b. Freedom from excessive force;
- c. Freedom from battery to his person;
- d. Freedom from illegal search and seizure;
- e. Freedom from false arrest;
- f. Freedom from racial discrimination; and
- g. Equal protection under the law.

31. Defendants subjected Plaintiff, JEFFERY LAMISON, to such deprivations, either in a malicious or reckless disregard of Plaintiff's rights or with deliberate indifference to those rights used guaranteed under the Fourth and Fourteenth Amendments of the United States Constitution.

32. The direct and proximate results of the defendants' acts are that Plaintiff, JEFFERY LAMISON, has suffered, and continues to suffer, severe and permanent injuries of a physical and psychological nature. He was forced to endure pain and suffering, all to his detriment.

AS AND FOR A FOURTH CAUSE OF ACTION
(MALICIOUS PROSECUTION)

33. Plaintiff repeats each and every allegation in this Complaint as though fully set forth at length herein.

34. Defendants maliciously prosecuted Plaintiff, JEFFERY LAMISON, by issuing several criminal charges which were unsubstantiated, unsupported by any facts, in bad faith and without probable cause.

35. Defendants caused the charges to be issued in malice because there was no violation of law as alleged in the charges.

36. Said charges were terminated in favor of Plaintiff, JEFFERY LAMISON, as Plaintiff was found not guilty of all charges in a judicial proceeding.

WHEREFORE, Plaintiff, JEFFERY LAMISON, demands judgment against Defendants, CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, NEW YORK CITY DEPARTMENT OF CORRECTIONS, POLICE OFFICER EDWARD CELONA, and GENTING NEW YORK LLC d/b/a/ RESORTS WORLD CASINO NEW YORK CITY, jointly and severally as follows:

(a) On the First Cause of Action in an amount which exceeds the jurisdictional limits of all lower court which would otherwise have jurisdiction;

(b) On the Second Cause of Action in an amount which exceeds the jurisdictional limits of all lower court which would otherwise have jurisdiction;

(c) On the Third Cause of Action in an amount which exceeds the jurisdictional limits of all lower court which would otherwise have jurisdiction;

(d) On the Fourth Cause of Action in an amount which exceeds the jurisdictional limits of all lower court which would otherwise have jurisdiction;

(e) Awarding the Plaintiff interests, costs, and disbursements in this action; and

(f) Granting such and other and further relief as this Court may deem just and proper.

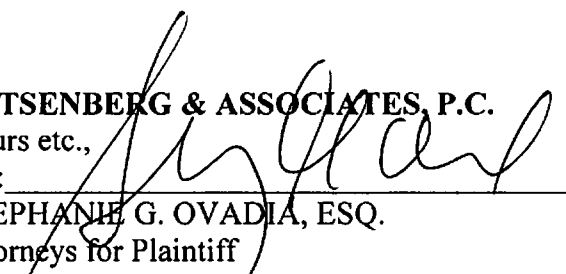
JURY DEMAND

Plaintiff demands a trial by jury.

Dated: Brooklyn, New York
May 13, 2019

RATSENBERG & ASSOCIATES, P.C.

Yours etc.,

BY: 

STEPHANIE G. OVADIA, ESQ.

Attorneys for Plaintiff

JEFFERY LAMISON

2579 East 17th Street, Suite 51

Brooklyn, New York 11235

(718) 676-5757

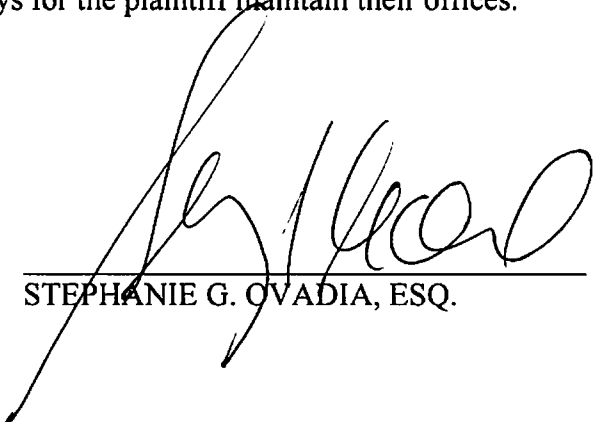
ATTORNEY'S VERIFICATION

STEPHANIE G. OVADIA, ESQ., an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am an attorney at RATSENBERG & ASSOCIATES, P.C., attorneys of record for Plaintiff(s), JEFFERY LAMISON. I have read the foregoing Complaint and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

The reason this verification is made by me and not Plaintiff is that Plaintiff is not presently in the county wherein the attorneys for the plaintiff maintain their offices.

Dated: Brooklyn, New York
May 13, 2019



STEPHANIE G. OVADIA, ESQ.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

JEFFERY LAMISON,

Plaintiff,

- against -

CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT, NEW YORK CITY
DEPARTMENT OF CORRECTIONS, POLICE
OFFICER EDWARD CELONA and GENTING NEW
YORK LLC d/b/a/ RESORTS WORLD CASINO
NEW YORK CITY,

Defendants.

SUMMONS & VERIFIED COMPLAINT

RATSENBERG & ASSOCIATES, P.C.

ATTORNEYS AT LAW

Attorneys for the Plaintiff

JEFFERY LAMISON

2579 East 17th Street, Suite 51
Brooklyn, New York 11235

Tel. (718) 676-5757

Fax (718) 676-5758

Pursuant to 22 NYCRR 130-1.1, the undersigned, an attorney admitted to practice in the courts of New York State, certifies that, upon information and belief and reasonable inquiry, the contentions contained in the annexed document are not frivolous.

Dated: *May 13, 2019*

Signature:
Print Signer's Name: STEPHANIE G. OVADIA, ESQ.